



CHAPTER cx.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Glasgow Goldsmiths Company. A.D. 1926.
[15th December 1926.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirma-
tion of
Order in
schedule.
2. This Act may be cited as the Glasgow Goldsmiths Company Order Confirmation Act 1926. Short title.

A.D. 1926.

S C H E D U L E.

THE GLASGOW GOLDSMITHS COMPANY.

Provisional Order to confer further powers on the Glasgow Goldsmiths Company in relation to the application of their funds and otherwise.

WHEREAS by the Act 59 George III. Cap. XXVIII. entitled "An Act for establishing an Assay Office in the City of Glasgow" (hereinafter referred to as "the Act of 1819") Robert Gray and other persons gold and silversmiths and plate workers in and about Glasgow were incorporated a company known by the name of The Glasgow Goldsmiths Company (hereinafter referred to as "the Company") and it was declared that they and such additional members of the Company as should be elected at the annual meetings of the Company should be members of the Company so long as they resided in the city of Glasgow or within forty miles to the west and south thereof the affairs of the Company to be in the hands of four Wardens elected annually :

And whereas the Company were invested with powers for assaying and marking gold and silver plate made in Glasgow or within forty miles thereof at an assay office to be provided by them and subject to and in accordance with the provisions of the Act of 1819 and were authorised by section 16 of that Act to demand and receive for assaying trying and marking gold and silver plate at their assay office the several prices sums of money or rewards therein specified :

And whereas by section 23 of the Act of 1819 it was enacted that in case the said prices sums of money or rewards should raise more money than should be sufficient to defray the expenses of the assay office then the overplus money (if any) should be applied by the Company from time to time in prosecuting offenders against the said Act and if such prosecutions should not require the whole of such overplus then the said prices

sums of money or rewards should afterwards be lessened in proportion by the Company who were required to take so much less for the assaying trying and marking wrought plate for the future as would reduce the sum to be taken to such a sum as would answer the aforesaid purposes only without bringing any profit to the Company :

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And whereas by the Plate (Scotland) Act 1836 (hereinafter referred to as "the Act of 1836") the Company were invested with further powers for assaying and marking gold and silver plate made in Scotland and were authorised by section 4 of the Act of 1836 to demand levy and receive for such assaying and marking such sums as should be found necessary but not exceeding one shilling for every ounce of gold and one penny for every ounce of silver where levied by weight and not exceeding one shilling for each piece of gold plate and threepence for each piece of silver plate where levied by the piece :

And whereas by section 15 of the Act of 1836 it was enacted that in case the said sums allowed for assaying and marking plate should in the whole be more than sufficient to defray the expenses of the assay office the overplus should be expended in the prosecution of suspected offenders against the Act and if such overplus should be more than should be required for that purpose the Company should reduce their rates or sums authorised to be levied or such of them as they in their discretion should think proper to be reduced to such rates or sums as should answer the purposes before mentioned without bringing any profit to the Company Provided always that if such reduced rates should prove insufficient at any time for the purposes before mentioned they should be raised again as much as should be necessary but never to exceed the rates authorised to be levied by the said Act of 1836 :

And whereas by section 2 of the Gold and Silver Wares Act 1854 workers or dealers in gold and silver were empowered to have the wares manufactured by them assayed and marked at any assay office or offices in Great Britain :

And whereas the said assay offices do now in consultation with one another from time to time decide

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Company Order Confirmation Act, 1926.

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— and marking gold and silver wares :

And whereas although the said rates have now been reduced to such a point that they cannot be further reduced and it is therefore not now practicable to make alterations each year on the sums to be charged nevertheless there is in many years an overplus in consequence of the volume of work coming to the assay office :

And whereas the business of the Company has during recent years largely increased and the Company have now accumulated a considerable surplus from the sums levied by them and it is expedient to make new provisions and grant power to the Company to accumulate a surplus and to provide also for the application of such surplus and that the further provisions in this Order contained should be given effect to :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

Short title. 1. This Order may be cited as the Glasgow Goldsmiths Company Order 1926.

Repeal. 2. The provisions of section 23 of the Act of 1819 and section 15 of the Act of 1836 in so far as the same are inconsistent with the provisions of this Order are hereby repealed.

Application
of income
of Company. 3. It shall be lawful for the Wardens of the Company after payment or providing for payment each year of the ordinary expenses of the assay office (which shall include maintenance improvement and extension of any buildings which the Company may acquire) and of the execution of their powers and duties under the Act of 1819 and the Act of 1836 or otherwise to make grants out of the income of the Company (from whatever source derived) and to such extent as the Wardens think fit to or for all or any of the following purposes namely :—

(a) To aged or invalid members servants or workpeople who are or have been in the employment of the Company;

(b) For the purchase of books and objects of art relating to the gold and silver plate trade or jewellery trade; A.D. 1926.
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(c) For donations or subscriptions to such philanthropic educational or other institutions in or near Glasgow as may be beneficial to the Company or its members or servants.

4.—(1) After meeting or providing for all expenditure in any year authorised by the Act of 1819 and the Act of 1836 or as before provided in this Order the remaining surplus income (if any) shall be applied as follows :— Provision as to surplus income.

(a) The whole of such surplus income shall be carried to and invested as a reserve fund until such fund is represented by investments to the value of ten thousand pounds and also (so often as such fund by reason of withdrawals as after provided or otherwise is reduced below the value aforesaid) until it has again been raised to the value of ten thousand pounds;

(b) After the said reserve fund has been raised to the value of ten thousand pounds one-half of such surplus income shall be carried to the said reserve fund until such fund is represented by investments to the value of twenty thousand pounds and also (so often as such fund by reason of withdrawals as after provided or otherwise is reduced below the said value of twenty thousand pounds but remains in excess of ten thousand pounds) until it has again been raised to the value of twenty thousand pounds and the remaining one-half shall be expended each year in grants to workers in the gold and silver plate trade for the purpose of furthering their education and developing their skill in their trade such workers to be recommended by members and approved by the Company at the annual meeting in each year Provided that the amount of such grants and the manner in which they shall be expended by such workers shall be determined by the Company and any balance of the said remaining one-half after such grants shall have been made

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shall be divided among such educational institutions as may be advantageous to the said trade as the Company may determine;

(c) After the reserve fund has been raised to the value of twenty thousand pounds and while it remains at that value the whole of the surplus income of each year shall be applicable in manner hereinbefore provided with respect to grants to workers.

(2) In the event of there being a deficit in any year on the ordinary working of the Company such deficit shall be made up by withdrawal from the reserve fund and if by reason of such withdrawals from time to time the reserve fund be reduced below the said value of twenty thousand pounds one-half of the surplus in the succeeding year or years shall once more be carried to the reserve fund until it has again been raised to the value of twenty thousand pounds and if by reason of such withdrawals from time to time the reserve fund be reduced below the said value of ten thousand pounds the whole of the surplus in the succeeding year or years shall once more be carried to the reserve fund until it has again been raised to the value of ten thousand pounds.

(3) All investments forming part of or belonging to the funds held by the Company at the date of this Order as set forth in the Schedule to this Order shall be carried to and form part of the reserve fund.

(4) Interest on the investments of the reserve fund shall be applicable as part of the ordinary income of the Company.

Investment
of sums
carried to
reserve
fund.

5. All sums carried to the reserve fund may be invested by the Company in heritable property or in any funds or securities in which trustees are for the time being authorised by the law of Scotland to invest trust moneys.

Application
of reserve.

6. The Company may from time to time realise any of the investments forming part of the reserve fund and apply the proceeds in or towards the acquisition of land and buildings the erection alteration or improvement of buildings the provision of new plant and any other purpose to which capital is properly applicable and the Company shall have power to borrow money on

the security of any of the said investments lands or buildings. A.D. 1926.

7. After the date of the passing of the Act confirming this Order the respective amounts of the prices sums of money rewards or rates authorised to be levied by the Company under the Act of 1819 and the Act of 1836 shall not exceed the respective amounts which immediately before the date of the passing of the Act confirming this Order were in fact taken and received by the Company unless and until the reserve fund after having been raised to the value of ten thousand pounds shall have been reduced for a period of not less than six months below the value of ten thousand pounds and in that case such increased prices sums of money rewards or rates may be taken as the Company shall see fit until the reserve fund is restored to the value of ten thousand pounds so however that the amounts of the prices sums of money rewards or rates so taken shall never exceed the maximum amounts authorised by the said Acts. Restriction on increase of fees.

8. The costs charges and expenses of and incident to the preparing for obtaining and confirmation of this Order or otherwise in relation thereto shall be paid by the Company out of the funds held by them at the date of this Order. Costs of obtaining this Order.

SCHEDULE referred to in the foregoing Order.

1. Heritable bond for £350 over subjects in Haugh Street Grahamstown Falkirk. Investments.
2. £300 4 per cent. guaranteed stock of the London Midland and Scottish Railway Company.
3. £7,300 5 per cent. War Stock 1929/47.

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